



File No.: EXP202408304

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On May 7, 2024, A.A.A. filed a complaint with the Spanish Agency for Data Protection against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. with NIF A48265169 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that they became aware of the inclusion of their personal data in the credit information system, file BADEXCUG, managed by the company EXPERIAN BUREAU DE CREDITO, S.A.U. (hereinafter, EXPERIAN), and this was done without the complainant's consent.

Along with the complaint, they provided:

- Complaint submitted to this Agency on 04/26/2024, to which they attached:
 - o Letter addressed to the company EXPERIAN dated 04/02/2024, in order to exercise the right to cancel their personal data from the BADEXCUG credit file; and this because the complained party had not duly notified them of such inclusion. The complainant also stated that the alleged debts for which they were included in the mentioned file were contradictory, inaccurate, and some of them were time-barred or expired, and others had been paid.
 - o Response from the company EXPERIAN dated 04/18/2024 to the complainant, informing them of the impossibility of canceling their data as it had been confirmed by the complained party.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 06/06/2024 as noted in the acknowledgment of receipt DEHÚ that is part of the file.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/5

The complained party submitted a written response to this Agency on 06/25/2024, stating that the complainant was duly informed, by means of a payment request dated 05/16/2023, of the existence of outstanding balances, as well as their possible communication to entities that manage credit information systems, without said request being returned for any reason, which would confirm that it was duly delivered.

Attached to their response:

- Letter dated 06/13/2024 addressed to the complainant informing them that, after the appropriate checks, outstanding balances of the complainant were confirmed in their records and that this situation had already been communicated to them on 05/16/2023 through a payment request.
- Three Payment Requests dated 05/16/2023.
- Certificate from the printing and mailing company ARTEOS DIGITAL, S.A.
- Two delivery notes from CORREOS.
- Delivery note of shipments from the company HISPAPOST.
- Certificate from the company EQUIFAX, contracted by the complained party to manage the shipments and returns of the payment requests.

THIRD: On August 7, 2024, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Credit Information Systems

Article 20 of the LOPDGDD, which regulates credit information systems, provides in its first section the following:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/5

"1. Unless proven otherwise, the processing of personal data related to the non-compliance with monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

- a) That the data has been provided by the creditor or by someone acting on their behalf or interest.
 - b) That the data refers to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.
 - c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate.
- The entity maintaining the credit information system with data related to the non-compliance with monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data remaining blocked during that period.
- d) That the data is only maintained in the system while the non-compliance persists, with a maximum limit of five years from the due date of the monetary, financial, or credit obligation.
 - e) That the data related to a specific debtor may only be consulted when the person consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or has requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation on consumer credit contracts and real estate credit contracts. When the right to limit the processing of the data has been exercised before the system by contesting its accuracy in accordance with Article 18.1.a) of Regulation (EU) 2016/679, the system will inform those who may consult it according to the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved.
 - f) That, in the event that the request for the conclusion of the contract is denied, or it is not concluded as a result of the consultation made, the person who consulted the system must inform the affected party of the result of that consultation."

III

Conclusion

From the examination of the documents provided by the responding party, it is concluded that:

- The certificate from EQUIFAX IBERICA, S.L. dated 21/06/2024 (company contracted by the responding party for the management of the service of returned notification letters for prior payment

requests) states that there is no record of the "Notification Letter of prior payment request with reference NT(...), generated in EQUIFAX on 16/05/2023 processed by ARTEOS DIGITAL, S.A. (successor entity of SERVIFORM, S.A.),

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/5

dated 16/05/2023 and made available for postal delivery on 17/05/2023, 18/05/2023, and 19/05/2023 addressed to the claimant, has not been returned for any reason to the designated post office box.

-

Certificate from ARTEOS DIGITAL, S.L. dated 21/06/2024, regarding the generation, printing, and provision of postal services between the days of 17, 18, and 19 May 2023, in which the communication addressed to the claimant was included, without any incidents occurring.

-

Delivery receipts to CORREOS and HISPAPOST from the client EQUIFAX IBERICA, S.L. and depositor SERVIFORM, S.A., dated 18/05/2023 and 19/05/2023, indicating the deposit of the three payment demands.

-

Three payment demands dated 16/05/2023, which state the alleged outstanding balances (amount to be paid, debtor amount, overdue amount, and interest rates), as well as the possibility of their inclusion in financial solvency files, as they state "we inform you that the data of certain, overdue, enforceable, and unpaid debts with the Bank may be communicated to the entities that manage the credit information systems managed by the following entities: Asnef-Equifax Servicios de Información sobre Solvencia y Crédito S.L. and Experian Bureau de Crédito S.A...". It is necessary to refer to what is expressly stated in the three payment demands: "This receipt is, for all purposes, a payment demand." Therefore, for the three payment demands, a certificate from an external company is provided, certifying that the three demands directed to the claimant were generated and printed, containing the information required by Article 20 of the LOPDGDD. Additionally, proof of delivery from CORREOS and HISPAPOST of the shipments and a certificate from an external company of non-return of the letter are provided, thus confirming that their actions are in accordance with the law.

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection. All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing as indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to BANCO BILBAO VIZCAYA ARGENTARIA, S.A. and to the claimant.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/5

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this

resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es